IN THE NATIONAL COMPANY LAW TRIBUNAL
KOLKATA BENCH
KOLKATA

Coram: 1. Hon'ble Member (J) Shri Jinan K.R.
2. Hon'ble Member (T) Shri Harish Chander Suri

CA (CAA) No. 1343/KB/2019
Harsh Fuels Private Limited.

ORDER

Ld. Counsel for the petitioner has mentioned the matter today and drawn our attention regarding certain typographical errors in the order dated 18.10.2019, which are to be corrected as follows:

1. At page 6, in Order portion para (ii) should be deleted.
2. At page 6, para (iii), 1st line, in Order portion the words **"secured and"** is to be inserted in between the words "**that**" and "**unsecured**".

The above rectifications of the order have been made in terms of the power conferred upon the Tribunal under Rule 154 of the NCLT Rules, 2016.

Amended order is to be uploaded forthwith.

Urgent photo copy of this order, if applied for, be supplied to the parties subject to compliance with all requisite formalities.

Sd

(Harish Chander Suri)
Member(T)

Sd
23.10.19

(Jinan K.R.)
Member(J)

Signed on this, the 23rd day of October, 2019.

IN THE NATIONAL COMPANY LAW TRIBUNAL
KOLKATA BENCH
KOLKATA

CA (CAA) NO.1343/KB/2019

In the matter of:
An application under section 230-232 of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016.

AND

In the matter of:
Harsh Fuels Private Limited, a company incorporated under the provisions of the Companies Act, 1956 and having its Registered Office at 40, Lansdowne Terrace, 2nd Floor P.O. Kalighat Kolkata- 700026, West Bengal;

Applicant/Petitioner No.1.

AND

In the matter of:
Sadguru Fuels Private Limited, a company incorporated under the provisions of the Companies Act, 1956 and having its Registered Office at 40, Lansdowne Terrace, 2nd Floor, Kolkata – 700026, West Bengal;

Applicant/Petitioner No.2.

In the matter of:
Suramic Dealcomm Private Limited, a Company incorporated under the provisions of the Companies Act, 1956 having its Registered Office at 40, Lansdowne Terrace, 2nd Floor P.O. Kalighat Kolkata – 700026, West Bengal;

Applicant/Petitioner No. 3.

AND

In the matter of:

1. **Harsh Fuels Private Limited; : (Transferee Company)**

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2. **Sadguru Fuels Private Limited; :(Transferor Co.No.1)**
3. **Suramic Dealcomm Private Limited; :(Transferor Co.No.2)**

.....Petitioners

Coram: Shri Jinan K.R., Hon'ble Member (Judicial) &
Shri Harish Chander Suri, Hon'ble Member (Technical)

Counsels of Record:

1. **SAGNIK BASU, ADVOCATE**
2. **RATUL DASH, ADVOCATE**
3. **ANUPAM SARDA, CA**
4. **MD. DILAWAR KHAN, ADVOCATE**

.....Applicant

Date of Hearing: 16th October, 2019
Date of Pronouncement of Order: 18.10.2019

Amended On: 23.10.2019

AMENDED ORDER

Per Shri. Jinan K.R, Hon'ble Member (J):

1. This application has been filed under Section 230-232 of the Companies Act, 2013 by the Applicant Companies viz. Harsh Fuels Private Limited, the Applicant No.1 (hereinafter referred to as the Transferee Company),and Sadguru Fuels Private Limited , the Applicant No. 2(hereinafter referred to as the Transferor Company) and Suramic Dealcomm Private Limited (hereinafter referred to as the Transferor Company) and their respective shareholders for obtaining sanction of this Tribunal regarding Scheme of Amalgamation proposed to be made

Sd

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between the Transferee Company and the Transferor Companies. A copy of the Scheme of Amalgamation has been annexed with the application as Annexure G.

2. As submitted by the applicants, the object of this application is to ultimately obtain sanction of this Tribunal to a Scheme of Amalgamation proposed to be made between the applicant companies and their respective shareholders under the Scheme of Amalgamation whereby and whereunder:-

   a. The amalgamation will enable the companies to expand its business activities by pooling their resources at one place. For the purposes of better, efficient and economical management, control and running of the business of the undertakings concerned and for administrative convenience and to obtain advantage of economy of large scale and to broad base the present business, the present Scheme is proposed to amalgamate the Transferor Companies with the Transferee Company.

   b. The amalgamation will result in economy of scale including reduction in overhead expenses relating to management and administration, better and more productive utilization of various resources;

   c. The business of the companies can be conveniently and advantageously combined together and in general business of

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the companies concerned will be carried on more economically and profitably under the said Scheme;

d. The said Scheme of Amalgamation will enable the establishment of a larger company with larger resources and a larger capital base enabling further development of the business of the companies concerned. The said scheme will also enable the undertakings and business of the said applicant companies to obtain greater facilities possessed and enjoyed by one large company compared with a number of small companies for raising capital, securing and conducting trade on favorable terms and other benefits;

e. The said scheme will contribute in furthering and fulfilling the objects of the companies concerned and in the growth and development of this business;

f. The said scheme will strengthen and consolidate the position of the amalgamated companies to increase its profitability;

g. The said scheme will enable the undertakings concerned to pool their resources and to expand their activities;

h. The said scheme will enable the companies concerned to rationalize and streamline their management, business and finances and to eliminate duplication of work to their common advantages;

i. The said scheme will have beneficial results for the companies concerned, their shareholders, employees and all concerned.

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j. The amalgamation will enable the amalgamated companies to broad-base their business activities under the roof of the Transferee Company.

k. The Scheme will enable the consolidation of the companies as the same are connected through common shareholding and management and will enable better efficient and economical managerial control and running of the business undertaking.

3. It is stated that the Board of Directors of all Applicant Companies have, at their respective Board Meetings held on 1st June, 2019 by a resolution passed unanimously, approved the Scheme of Amalgamation. Copy of the Board Resolution passed by all Applicant Companies are annexed with the application as Annexure "H".

4. Ld. Counsel for the applicant companies submitted that the assets of the applicant companies are sufficient to meet all their liabilities and the said scheme will not adversely affect the rights of any of the creditors of any of the applicant companies in any manner whatsoever.

5. It is revealed from the record that the copy of valuation Report for exchange ratio of shares of the Transferor Companies and Transferee Company is in conformity with the accounting standard under Section 133 and is annexed with the application as Annexure I.

6. Ld. Counsel for the applicant companies submit that each and every shareholder of the applicant companies and creditors of the applicant companies have considered and have given their consent in writing by way of affidavit agreeing to the Scheme holding and convening of the meetings of the shareholders of the applicant companies does not arise.

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7. It is stated that there are no proceedings pending under Sections 235 to 251 of the Companies act, 1956 against any of the applicant companies.
8. Ld. Counsel further submits, that all the shareholders and creditors, of the applicant companies have given affidavit annexed with the application relating to no-objection to the Scheme convening and holding of individual meetings of the shareholders and creditors of the applicant companies may be dispensed with.
9. Heard Ld. Counsel for the applicants. Perused the record annexed with the application. In view of absence of any objection and since all the requisite compliance has been fulfilled, the following order is passed: -

ORDER

i. In view of the individual affidavit given by the shareholders of all the applicant companies, meeting of the shareholders of the applicant companies is hereby dispensed with;

ii. In view of the fact that secured and unsecured creditor of Transferee Company and Transferor Companies, has given consent by way of affidavit therefore question of holding meeting of secured creditor does not arise, hence dispensed with.

iii. The petitioner companies shall serve notice of the petition on the following authorities, namely,

   a. Central Government, through Regional Director, Eastern Region, Ministry of Corporate Affairs, Kolkata;
   b. Registrar of Companies, West Bengal;
   c. Official Liquidator, High Court, Calcutta;

Sd/-

Sd/-

d. Income Tax Department of the Office having jurisdiction over the respective Applicant companies;

e. Reserve Bank of India;

f. Competition Commission of India;

Pursuant to Section 230(5) of the Companies act, 2013 read with Rule 8 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016, with suitable changes in notice relating to waiver of meetings and such other relevant and secotoral regulators/authorities, if applicable which are likely to be affected by the proposed said Scheme by sending the same by hand delivery, through special messenger or by registered post or speed post within 7 days from the date of this order filing their representations, if any on the petition. Notice along with the copy of the application and other related documents along with PAN of the applicant Companies should be served upon the Chief Commissioner of Income Tax Department by e-mail and Speed Post or by Messenger. Applicant Companies are also directed to mention their respective PAN number everywhere.

iv. The Applicants shall file affidavit within 14 days of serving the notice regarding the service of notice.

v. If no response is received by the Tribunal from the above authorities within 30 days of date of receipt f the notice it will be presumed that such authorities have no objection to the

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proposed Scheme as per rule 8 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016.

vi. Liberty is given to file joint petition by the Applicant Companies in accordance with Rule 15 of the Companies (Compromises, Arrangements and Amalgamations) Rules,2016.

vii. An affidavit of compliance of all the conditions laid down herein along with original proof of service to all authorities to be filed jointly by the Applicant Companies.

10. The Application being CA (CAA) No. 1343/KB/2019 is disposed of accordingly.

11. Urgent certified copies of this order, if applied for, be supplied to the parties upon compliance of all requisite formalities.

Sd

(Harish Chander Suri)

Member(T)

Sd

23/10/19

(Jinan K.R)

Member(J)

Signed on this, the 23 day of October,2019

M.B

IN THE NATIONAL COMPANY LAW TRIBUNAL
KOLKATA BENCH
KOLKATA

CA (CAA) NO.1343/KB/2019

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Applicant/Petitioner No.1.

AND

In the matter of:
Sadguru Fuels Private Limited, a company incorporated under the provisions of the Companies Act, 1956 and having its Registered Office at 40, Lansdowne Terrace, 2nd Floor, Kolkata – 700026, West Bengal;

Applicant/Petitioner No.2.

In the matter of:
Suramic Dealcomm Private Limited, a Company incorporated under the provisions of the Companies Act, 1956 having its Registered Office at 40, Lansdowne Terrace, 2nd Floor P.O. Kalighat Kolkata – 700026, West Bengal;

Applicant/Petitioner No. 3.

AND

In the matter of:

1. **Harsh Fuels Private Limited;** **: (Transferee Company)**

2. Sadguru Fuels Private Limited; :(Transferor Co.No.1)
3. Suramic Dealcomm Private Limited; :(Transferor Co.No.2)

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Coram: Shri Jinan K.R., Hon'ble Member (Judicial) &
Shri Harish Chander Suri, Hon'ble Member (Technical)

Counsels of Record:

1. SAGNIK BASU, ADVOCATE
2. RATUL DASH, ADVOCATE
3. ANUPAM SARDA, CA
4. MD. DILAWAR KHAN, ADVOCATE

.....Applicant

Date of Hearing: 16th October, 2019

Date of Pronouncement of Order: 18.10.2019

ORDER

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1. This application has been filed under Section 230-232 of the Companies Act, 2013 by the Applicant Companies viz. Harsh Fuels Private Limited, the Applicant No.1 (hereinafter referred to as the Transferee Company),and Sadguru Fuels Private Limited , the Applicant No. 2(hereinafter referred to as the Transferor Company) and Suramic Dealcomm Private Limited (hereinafter referred to as the Transferor Company) and their respective shareholders for obtaining sanction of this Tribunal regarding Scheme of Amalgamation proposed to be made

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   a. The amalgamation will enable the companies to expand its business activities by pooling their resources at one place. For the purposes of better, efficient and economical management, control and running of the business of the undertakings concerned and for administrative convenience and to obtain advantage of economy of large scale and to broad base the present business, the present Scheme is proposed to amalgamate the Transferor Companies with the Transferee Company.

   b. The amalgamation will result in economy of scale including reduction in overhead expenses relating to management and administration, better and more productive utilization of various resources;

   c. The business of the companies can be conveniently and advantageously combined together and in general business of

Sd

Sd

the companies concerned will be carried on more economically and profitably under the said Scheme;

d. The said Scheme of Amalgamation will enable the establishment of a larger company with larger resources and a larger capital base enabling further development of the business of the companies concerned. The said scheme will also enable the undertakings and business of the said applicant companies to obtain greater facilities possessed and enjoyed by one large company compared with a number of small companies for raising capital, securing and conducting trade on favorable terms and other benefits;

e. The said scheme will contribute in furthering and fulfilling the objects of the companies concerned and in the growth and development of this business;

f. The said scheme will strengthen and consolidate the position of the amalgamated companies to increase its profitability;

g. The said scheme will enable the undertakings concerned to pool their resources and to expand their activities;

h. The said scheme will enable the companies concerned to rationalize and streamline their management, business and finances and to eliminate duplication of work to their common advantages;

i. The said scheme will have beneficial results for the companies concerned, their shareholders, employees and all concerned.

Sd

Sd

j. The amalgamation will enable the amalgamated companies to broad-base their business activities under the roof of the Transferee Company.

k. The Scheme will enable the consolidation of the companies as the same are connected through common shareholding and management and will enable better efficient and economical managerial control and running of the business undertaking.

3. It is stated that the Board of Directors of all Applicant Companies have, at their respective Board Meetings held on 1st June, 2019 by a resolution passed unanimously, approved the Scheme of Amalgamation. Copy of the Board Resolution passed by all Applicant Companies are annexed with the application as Annexure "H".

4. Ld. Counsel for the applicant companies submitted that the assets of the applicant companies are sufficient to meet all their liabilities and the said scheme will not adversely affect the rights of any of the creditors of any of the applicant companies in any manner whatsoever.

5. It is revealed from the record that the copy of valuation Report for exchange ratio of shares of the Transferor Companies and Transferee Company is in conformity with the accounting standard under Section 133 and is annexed with the application as Annexure I.

6. Ld. Counsel for the applicant companies submit that each and every shareholder of the applicant companies and creditors of the applicant companies have considered and have given their consent in writing by way of affidavit agreeing to the Scheme holding and convening of the meetings of the shareholders of the applicant companies does not arise.

7. It is stated that there are no proceedings pending under Sections 235 to 251 of the Companies act, 1956 against any of the applicant companies.

8. Ld. Counsel further submits, that all the shareholders and creditors, of the applicant companies have given affidavit annexed with the application relating to no-objection to the Scheme convening and holding of individual meetings of the shareholders and creditors of the applicant companies may be dispensed with.

9. Heard Ld. Counsel for the applicants. Perused the record annexed with the application. In view of absence of any objection and since all the requisite compliance has been fulfilled, the following order is passed: -

ORDER

i. In view of the individual affidavit given by the shareholders of all the applicant companies, meeting of the shareholders of the applicant companies is hereby dispensed with;

ii. In view of the fact that the applicant companies have no secured creditors, therefore, question of holding meeting of the secured creditors does not arise, hence dispensed with.

iii. In view of the fact that unsecured creditor of Transferee Company and Transferor Companies, has given consent by way of affidavit therefore question of holding meeting of secured creditor does not arise, hence dispensed with.

iv. The petitioner companies shall serve notice of the petition on the following authorities, namely,

   a. Central Government, through Regional Director, Eastern Region, Ministry of Corporate Affairs, Kolkata;

b. Registrar of Companies, West Bengal;

c. Official Liquidator, High Court, Calcutta;

d. Income Tax Department of the Office having jurisdiction over the respective Applicant companies;

e. Reserve Bank of India;

f. Competition Commission of India;

Pursuant to Section 230(5) of the Companies act, 2013 read with Rule 8 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016, with suitable changes in notice relating to waiver of meetings and such other relevant and secotoral regulators/authorities, if applicable which are likely to be affected by the proposed said Scheme by sending the same by hand delivery, through special messenger or by registered post or speed post within 7 days from the date of this order filing their representations, if any on the petition. Notice along with the copy of the application and other related documents along with PAN of the applicant Companies should be served upon the Chief Commissioner of Income Tax Department by e-mail and Speed Post or by Messenger. Applicant Companies are also directed to mention their respective PAN number everywhere.

v. The Applicants shall file affidavit within 14 days of serving the notice regarding the service of notice.

Sd

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vi. If no response is received by the Tribunal from the above authorities within 30 days of date of receipt f the notice it will be presumed that such authorities have no objection to the proposed Scheme as per rule 8 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016.

vii. Liberty is given to file joint petition by the Applicant Companies in accordance with Rule 15 of the Companies (Compromises, Arrangements and Amalgamations) Rules,2016.

viii. An affidavit of compliance of all the conditions laid down herein along with original proof of service to all authorities to be filed jointly by the Applicant Companies.

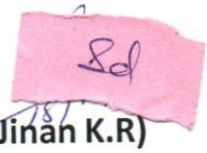
10. The Application being CA (CAA) No. 1343/KB/2019 is disposed of accordingly.

11. Urgent certified copies of this order, if applied for, be supplied to the parties upon compliance of all requisite formalities.



(Harish Chander Suri)

Member(T)



(Jinan K.R)

Member(J)

Signed on 18.10.2019

M.B